

1 ENGROSSED SENATE
2 BILL NO. 1733

By: Thompson and Hamilton of
the Senate

3 and

4 Lawson of the House

5
6 An Act relating to schools; amending Section 1,
Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section
7 6-401), which relates to student communications;
8 requiring immediate notification to law enforcement
of certain violations; updating statutory language;
9 requiring public and private school employees to
report certain disclosure, allegation, or information
to law enforcement within certain time period;
10 clarifying term; requiring certain officer to submit
certain report under certain circumstances; requiring
11 certain report to law enforcement prior to certain
formal investigation or questioning; prohibiting
12 school personnel from taking certain actions until
law enforcement has been notified; providing
13 exception; requiring certain information to be kept
confidential or redacted; requiring public and
14 private school employees to annually sign certain
attestation; providing certain construction;
15 providing for codification; providing an effective
date; and declaring an emergency.
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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L.
20 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as
21 follows:

22 Section 6-401. A. As used in this section:

23 1. "Electronic or digital communication" includes, but is not
24 limited to, emails, text messages, instant messages, direct

1 messages, social media messages, messages sent through software
2 applications, and any other electronic digital means of
3 communication; and

4 2. "School personnel" means teachers, coaches, administrators,
5 school bus drivers, or any other persons employed full-time or part-
6 time by a public school or charter school.

7 B. School personnel engaging in electronic or digital
8 communication with an individual student shall include the student's
9 parent or legal guardian in any electronic or digital communication,
10 unless such communication is on a school-approved platform and
11 related to school and academic communications.

12 C. Exceptions to the requirement in subsection B of this
13 section may be made in case of an emergency, subject to subsequent
14 notification to the parent or legal guardian. School personnel
15 shall make reasonable efforts to use school-approved platforms,
16 systems, or applications that allow automatic inclusion of parents
17 or legal guardians in communications with students.

18 D. Schools shall provide training, developed by the State
19 Department of Education, for school personnel on the student
20 communication requirements of this section.

21 E. Any school personnel who is reported to be in violation of
22 subsection B of this section shall be put on administrative leave
23 while the school district investigates the incident and notifies the
24 board of education. If the investigation finds that no misconduct

1 occurred, the school personnel shall be reinstated and the incident
2 shall be noted in the school personnel's employee file. If the
3 investigation finds misconduct occurred, the school personnel shall
4 be disciplined according to the school district board of education's
5 policy, up to and including termination of employment, and the
6 incident shall be reported to law enforcement pursuant to Section
7 1210.163 of ~~Title 70 of the Oklahoma Statutes~~ this title.

8 F. A school district or charter school shall immediately notify
9 law enforcement of any violation of subsection B of this section
10 involving sexual activity, sexual contact, or any other
11 inappropriate or unlawful behavior pursuant to Section 1210.163 of
12 this title.

13 SECTION 2. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1210.164 of Title 70, unless
15 there is created a duplication in numbering, reads as follows:

16 A. 1. In addition to any report required pursuant to Section
17 1210.163 of Title 70 of the Oklahoma Statutes, every public and
18 private school employee having reason to believe, or receiving an
19 allegation or disclosure, that a student is the victim of sexual
20 abuse, sexual assault, or sexual misconduct, shall report the
21 disclosure, allegation, or information within twenty-four (24) hours
22 to local law enforcement.

23 2. For the purposes of this section, local law enforcement
24 means a law enforcement agency that is independent of the public

1 school district or private school, or a campus police department
2 thereof, and shall not include a school resource officer employed by
3 the public school district or private school unless directed by the
4 independent law enforcement agency. When a school resource officer
5 is utilized pursuant to this subsection, the officer shall submit a
6 written report describing the circumstances and any actions taken to
7 the independent law enforcement agency.

8 B. 1. Any disclosure or allegation made pursuant to this
9 section shall be reported to law enforcement prior to any formal
10 investigation by the public school district or its board of
11 education or the private school or its governing body or questioning
12 of the subject of the disclosure or allegation.

13 2. No school investigator, administrator, or official shall
14 conduct formal interviews of the subject of the disclosure or
15 allegation or engage in disciplinary proceedings until law
16 enforcement has been notified and has had the opportunity to
17 interview the involved parties, unless law enforcement determines
18 that an immediate school response is necessary to protect student
19 safety.

20 C. In reports required by subsection A of this section, local
21 law enforcement shall keep confidential and redact any information
22 identifying the reporting school employee unless otherwise ordered
23 by the court. A school employee with knowledge of a report required
24 by subsection A of this section shall not disclose information

1 identifying the reporting school employee unless otherwise ordered
2 by the court or as part of an investigation by local law enforcement
3 or the State Department of Education.

4 D. In addition to the attestation required by Section 1210.163
5 of Title 70 of the Oklahoma Statutes, every public and private
6 school employee shall annually sign an attestation acknowledging his
7 or her responsibility to report suspected child abuse or neglect
8 pursuant to this section. Failure to sign an attestation shall not
9 relieve school personnel from the obligations created in this
10 section or Section 1210.163 of Title 70 of the Oklahoma Statutes,
11 nor shall such failure constitute a defense to criminal liability
12 arising under Section 1-2-101 of Title 10A of the Oklahoma Statutes.

13 SECTION 3. This act shall become effective July 1, 2026.

14 SECTION 4. It being immediately necessary for the preservation
15 of the public peace, health, or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

1 Passed the Senate the 11th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives